WhatIDid LLC

SaaS Services Agreement

CONFIDENTIAL
Version 1.0 | 2026

1. Parties

This SaaS Services Agreement ("Agreement") is entered into as of the date last signed below ("Effective Date") by and between:

SERVICE PROVIDER

WhatIDid LLC
A limited liability company organized under the laws of [State]
Address: ______________________________
Email: ______________________________

CLIENT

Company Name: ______________________________
Legal Entity Type: ______________________________
Address: ______________________________
Email: ______________________________
Primary Contact: ______________________________

2. Scope of Services

WhatIDid LLC agrees to provide the Client with access to the WhatIDid platform, a cloud-based SaaS application enabling organizations to capture, structure, and share work experiences to accelerate organizational learning. Services include:

- Access to the WhatIDid web application for the number of users specified in Schedule A
- Platform configuration including work categories and organizational structure
- Storage for experiences, comments, and uploaded documents
- Standard support as described in Section 9
- Software updates and improvements released during the subscription term

Optional professional services (data migration, AI-assisted knowledge structuring, training) are available as separate engagements and not included unless specified in Schedule A.

3. Fees and Payment

3.1 Implementation Fee

A one-time Implementation Fee as specified in Schedule A is due upon execution of this Agreement. This fee covers platform setup, configuration, initial data seeding, and onboarding support.

3.2 Annual License Fee

The Annual License Fee is calculated based on the number of active users as set forth in Schedule A. The fee is due annually in advance on the anniversary of the Effective Date. Current pricing tiers:

Users	Annual Fee (per user)
50 – 200 users	$$$ / user / year
200 – 1,000 users	$$ / user / year
1,000 – 5,000 users	$ / user / year
5,000+ users	Custom pricing

** Pricing per user will be aligned with the Client prior to contract execution and is always decreasing with higher user volumes — the more users, the lower the per-user fee.*

3.3 Payment Terms

- Invoices are due within 30 days of issuance
- Late payments accrue interest at 1.5% per month
- All fees are non-refundable unless otherwise stated
- Prices may be adjusted with 60 days written notice prior to renewal

4. Infrastructure and Deployment

The Service is delivered via cloud infrastructure. The default deployment uses Vercel (application hosting) and Supabase (database and storage), both industry-standard cloud platforms. For Clients with specific compliance or data residency requirements, the Service can be deployed on dedicated infrastructure:

- Google Cloud Platform
- Amazon Web Services (AWS)
- Microsoft Azure

The preferred cloud provider and region must be specified in Schedule A. Any costs associated with a dedicated cloud deployment are included in the Implementation Fee or quoted separately. The Service Provider maintains all infrastructure and is responsible for uptime as specified in Section 8.

5. Data Ownership and Privacy

5.1 Client Data Ownership

All data submitted by the Client or its users to the platform ("Client Data") remains the exclusive property of the Client. WhatIDid LLC claims no ownership rights over Client Data.

5.2 Data Processing

WhatIDid LLC processes Client Data solely to provide the Services described in this Agreement and will not use Client Data for any other purpose, including training machine learning models, without explicit written consent.

5.3 Data Portability

Upon written request or upon termination of this Agreement, WhatIDid LLC will provide the Client with an export of all Client Data in a machine-readable format (JSON or CSV) within 30 days. Data will be permanently deleted from WhatIDid LLC systems within 60 days of termination unless legally required to retain it.

5.4 Applicable Law

WhatIDid LLC will process Client Data in compliance with applicable data protection laws including, where applicable, the General Data Protection Regulation (GDPR), the California Consumer Privacy Act (CCPA), and other relevant regulations.

6. Data Security

WhatIDid LLC implements the following security measures:

- Encryption of data in transit (TLS 1.2+) and at rest (AES-256)
- Role-based access controls limiting data access to authorized personnel
- Regular security assessments and vulnerability testing
- Incident response procedures with notification to Client within 72 hours of a confirmed breach
- Backups performed daily with 7-day retention (default plan). Extended retention of up to 30 days is available upon request and may be subject to additional fees.

7. Confidentiality

Each party agrees to keep confidential all non-public information disclosed by the other party in connection with this Agreement ("Confidential Information"). Each party will:

- Use Confidential Information solely for the purpose of performing its obligations under this Agreement
- Not disclose Confidential Information to any third party without prior written consent
- Protect Confidential Information with at least the same degree of care used for its own confidential information, but no less than reasonable care

This obligation survives termination of this Agreement for a period of three (3) years.

8. Uptime and Service Level Agreement (SLA)

UPTIME COMMITMENT
WhatIDid LLC targets high availability for the Service, delivered via Vercel (application hosting) and Supabase (database), both of which maintain historically high uptime (above 99.5%). Uptime is subject to the service levels provided by these underlying platforms. WhatIDid LLC will make commercially reasonable efforts to ensure availability and will notify Client promptly of any significant service disruptions. Scheduled maintenance will be announced at least 48 hours in advance and performed outside peak business hours.

In the event of downtime exceeding the SLA, Client will receive a service credit equal to:

- Downtime caused by platform infrastructure (Vercel/Supabase): no credit applies; Client may refer to platform status pages
- Downtime caused by WhatIDid LLC application errors (>4 hours in a month): 10% credit on monthly fee
- Downtime caused by WhatIDid LLC application errors (>24 hours in a month): 25% credit on monthly fee

Service credits are the Client's sole remedy for SLA breaches and must be requested within 30 days of the incident.

9. Support

Support Type	Channel	Response Time

Critical (system down)	Email / Phone	4 business hours
High (major feature)	Email	1 business day
Standard (questions)	Email	3 business days

10. Term and Termination

10.1 Term

This Agreement commences on the Effective Date and continues for one (1) year ("Initial Term"), unless earlier terminated. After the Initial Term, it automatically renews for successive one-year periods unless either party provides 60 days written notice of non-renewal.

10.2 Termination for Cause

Either party may terminate this Agreement immediately upon written notice if:

- The other party materially breaches this Agreement and fails to cure such breach within 30 days of written notice
- The other party becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy proceedings

10.3 Effect of Termination

Upon termination, Client's access to the platform will be suspended. WhatIDid LLC will provide a data export as described in Section 5.3. No refunds will be issued for prepaid fees except in cases of termination for cause by the Client.

11. Limitation of Liability

IMPORTANT NOTICE

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, WHATIDID LLC'S TOTAL LIABILITY TO CLIENT FOR ANY CLAIMS ARISING UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

12. Intellectual Property and Code Ownership

12.1 Proprietary Software

All source code, software, algorithms, application logic, and the WhatIDid brand and product concept underlying the platform remain the exclusive intellectual property of WhatIDid LLC. The "WhatIDid" name, logo, and product description are the subject of a U.S. trademark application pending with the United States Patent and Trademark Office (USPTO Serial No. 99602219, filed 2026). The Client is granted a limited, non-exclusive, non-transferable license to use the Service during the Term. The Client shall have no right to access, copy, reverse-engineer, decompile, distribute, or create derivative works based on the Service or its underlying concepts, features, or user experience.

12.2 Client Data Ownership

All data entered by the Client and its users into the Service — including experiences, comments, employee records, and uploaded files — is and remains the exclusive property of the Client. WhatIDid LLC acts solely as a data processor on behalf of the Client. Upon request or termination, WhatIDid LLC will provide the Client with a full export of their data within 30 days. Each Client's data is stored in a dedicated, isolated database instance and is never commingled with data from other clients.

12.3 Infrastructure Access

The Client is granted access to the Service through the application interface and the Admin panel. WhatIDid LLC manages the hosting infrastructure (Vercel), database and storage (Supabase), and version control (GitHub) on behalf of the Client. Each Client's data is stored in a dedicated Supabase project isolated from other clients. The Client is not granted access to hosting, version control, or deployment systems unless explicitly agreed upon in writing. Upon request, WhatIDid LLC will provide the Client with read-only access to their dedicated database instance.

12.4 Prohibition on Copying and Imitation

The Client agrees not to, directly or indirectly: (i) copy, reproduce, imitate, or create a product substantially similar to WhatIDid in concept, design, or functionality; (ii) use knowledge gained through access to the Service to develop a competing product; (iii) engage or assist any third party in doing so. Any violation of this section shall constitute a material breach of this Agreement and may give rise to injunctive relief and claims for damages, including but not limited to lost profits and legal fees. This prohibition survives termination of the Agreement for a period of three (3) years.

13. International Clients

13.1 Governing Agreement

This Agreement is binding on international clients and shall be governed by the laws of the State of Florida, United States, regardless of the Client's country of incorporation or operation. The Agreement may be executed in English, which shall be the authoritative language for all purposes.

13.2 Dispute Resolution

Any dispute arising from this Agreement involving an international Client shall be resolved through binding international arbitration under the rules of the Hong Kong International Arbitration Centre (HKIAC), with proceedings conducted in English. The arbitration seat shall be Hong Kong. Each party shall bear its own costs unless the arbitrator determines otherwise.

13.3 Payments

All fees are payable in United States Dollars (USD). International Clients may remit payment via international wire transfer (SWIFT) to WhatIDid LLC's designated bank account. The Client is responsible for any applicable foreign exchange fees, bank transfer charges, or withholding taxes imposed by the Client's jurisdiction. WhatIDid LLC will provide necessary documentation (including W-8BEN-E or equivalent) upon request.

13.4 Infrastructure for International Clients

For Clients in regions with specific connectivity requirements (including but not limited to mainland China), WhatIDid LLC can deploy a dedicated instance of the Service on cloud infrastructure located in closer geographic proximity (e.g., AWS Hong Kong or Singapore). Such dedicated deployments may incur additional infrastructure costs, which will be agreed upon in Schedule A prior to execution.

14. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of [State], without regard to its conflict of law provisions. Any disputes arising under this Agreement shall first be submitted to good-faith negotiation. If unresolved within 30 days, disputes shall be submitted to binding arbitration in [City, State] under the rules of the American Arbitration Association.

15. General Provisions

- Entire Agreement: This Agreement, together with all Schedules, constitutes the entire agreement between the parties regarding its subject matter
- Amendments: Any modification must be in writing and signed by both parties
- Waiver: Failure to enforce any provision does not constitute a waiver of future enforcement
- Severability: If any provision is found unenforceable, the remaining provisions continue in full force
- Force Majeure: Neither party is liable for delays caused by circumstances beyond their reasonable control
- Assignment: Client may not assign this Agreement without prior written consent from WhatIDid LLC
- Notices: All notices must be in writing and delivered by email with confirmation of receipt

16. Signatures

By signing below, both parties agree to be bound by the terms of this Agreement.

WhatIDid LLC	**Client**
Signature	Signature

Name & Title	Name & Title
Date	Date

SCHEDULE A — Order Form

This Schedule A is incorporated into the SaaS Services Agreement between WhatIDid LLC and the Client.

Subscription Details

Effective Date:	______________________________
Subscription Term:	1 year (auto-renewing)
Number of Users:	______________________________
Cloud Provider:	Default (Vercel + Supabase) / Google Cloud / AWS / Azure
Data Region:	______________________________

** Pricing per user will be aligned with the Client prior to contract execution and is always decreasing with higher user volumes — the more users, the lower the per-user fee.*

Fees

Implementation Fee:	______________________________
Annual License Fee:	______________________________
Total Year 1:	______________________________

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Optional Services

Data Migration:	Included / Not included
AI Knowledge Structuring:	Included / Not included

Training Sessions: | Included / Not included

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Notes